

Tentative Rulings for July 27, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 782 8254**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2400574	CANALES vs ULTRA SHINE CA LLC	MOTION TO BE RELIEVED AS COUNSEL FOR ULTRA SHINE, INC.,

Tentative Ruling:

The unopposed motion to be relieved as counsel of record is denied.

Analysis:

The declaration states that “our office attempted contact” with the client, “our office” received no response, and “our office” conducted a search. It appears that the declarant lacks personal knowledge of those facts. Moreover, the medium by which those attempts were made is vague. Paragraph 4 of the declaration is blank. The proposed order includes a telephone number for the client that is not supported by the declaration. The proposed order is blank at paragraphs 5 and 7.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2400574	CANALES vs ULTRA SHINE CA LLC	MOTION TO BE RELIEVED AS COUNSEL FOR ULTRA SHINE CA LLC

Tentative Ruling:

Although defense counsel reserved hearings for motions to be relieved regarding both Ultra Shine CA, LLC, and Ultra Shine, LLC, the documents filed by counsel are all for Ultra Shine CA. No motion has been filed regarding Ultra Shine.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2405011	OCHOA vs CITY OF RIVERSIDE	MOTION FOR LEAVE TO AMEND

Tentative Ruling:

The defendants’ request for judicial notice is denied.

The motion for leave to amend is denied.

Analysis:

The defendants’ request for judicial notice is irrelevant to the Court’s analysis and is denied on that basis.

Estrada states that the decedent died “with a trust” and no probate estate was opened. She does not state whether the trust was inter vivos or testamentary, whether she is the trustee of the trust, or whether she is a beneficiary of the trust. Nor does she explain how the cause of action became an asset of the trust. (Cf. Code Civ. Proc. § 377.32, subd. (a)(4) [“[i]f the decedent’s estate was administered, a copy of the final order showing the distribution of the decedent’s cause of action to the successor in interest”].) The amended

declaration also fails to state whether Estrada is authorized to act on behalf of the decedent's five other alleged successors in interest in compliance with Code of Civil Procedure section 377.32, subdivision (a)(5)(B). (See Estrada Amended Decl., ¶4.)

4.

CASE #	CASE NAME	HEARING NAME
CVRI2501200	VASQUEZ vs HYUNDAI MOTOR AMERICA	MOTION FOR ATTORNEY'S FEES

Tentative Ruling:

The Court does not consider the untimely declaration filed with the plaintiff's reply.

The plaintiff's objections to the declaration of Tasildoost are overruled. The objections to the declaration of Hooper are overruled as to Objection #1 and sustained as to Objection #2.

The motion for attorney's fees and expenses is granted in the reduced sum of \$15,013.87.

Analysis:

Plaintiff claims compensation for attorney's fees at rates ranging from \$400/hour to \$600/hour for attorneys. A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The hourly rates claimed for counsel are not reasonable for Riverside County, especially for a simple lemon law case. Plaintiff makes no showing they could not obtain local counsel, and thus are not entitled to out-of-town rates. (See *Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 615-619.) The Court reduces the rates to \$450/hour for a partner, \$350/hour for an associate, and \$150/hour for non-California licensed clerks.

In evaluating the reasonableness of an attorney fee request, the trial court may consider whether the case was overstaffed. (*Reck v. FCA US, LLC* (2021) 4 Cal.App.5th 682, 699.) This case was clearly overstaffed with 7 attorneys, 1 paralegal, and one law clerk. The Court does not compensate for the de minimis time entries of attorneys Colby Meagle, Lauren Unga, Russell Higgins and Sundeep Samra, each of whom billed under 3 hours on this case.

The plaintiff's request for a multiplier is denied. There is no evidence that the services rendered were of exceptional quality or exceptional risk.

The Court reduces the costs by the sum of \$983.20, described only as Attorney Services and Messenger Court Filings and Service without any itemization or further explanation.

5.

CASE #	CASE NAME	HEARING NAME
PRRI1900007	In the Matter of Hedwig W. Muller Separate Property Trust	MOTION FOR RECONSIDERATION OF ORDER DATED JUNE 18, 2026

Tentative Ruling:

The motion for reconsideration is denied.

Analysis:

The motion fails because it does not rely on any new facts, i.e., facts that could not with reasonable diligence have been presented in response to the underlying petition for instructions. Instead, the supposedly “new” facts are all events that occurred in 2021, five years before the response was filed.

What the Court said regarding the opposition to that petition is equally applicable to the instant motion for reconsideration: “The minute order dated June 6, 2021, contradicts the judgment filed on June 7, 2021. That the minute order is a clerical error is obvious from the degree to which it is utterly inconsistent with both the judgment signed by the Court and the Court’s tentative decision on which that judgment is based. Any contention that the minute order is the judgment, or that the minute order amends the judgment, is frivolous.”